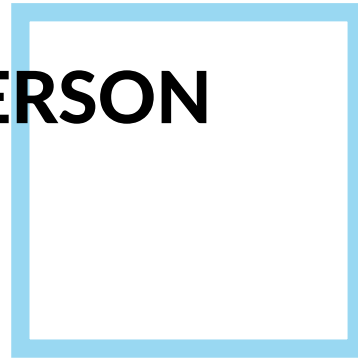


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TURKISH BUSINESSPERSON VISA



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TURKISH BUSINESSPERSON VISA

***** UPDATE:** New applications for the Turkish Businessperson visa have now closed. Only children under 21 ('child dependants') can apply to join you in the UK on this visa. You can apply to extend your Turkish Businessperson visa if you already have permission to stay in the UK as a Turkish Businessperson. This page will be updated shortly. ***

The Turkish Businessperson visa is for Turkish nationals over the age of 18 who either want to start a new business in the UK or come to the UK to help run an established business.

What are the requirements for a Turkish Businessperson visa?

In order to qualify for a Turkish Businessperson visa under the Turkish EC Association Agreement ('ECAA' or 'Ankara Agreement'), you will need to satisfy UK Visas and Immigration that you are a Turkish national and:

- You have a genuine intention to set up a viable business;
- You will devote sufficient funds or assets of your own to establish your business;
- You will be able to pay your share of the costs of running the business;
- Your part in the business will not amount to disguised employment;
- Your share of the profits will be enough to support you and your family without you needing to have another job or rely on public funds;
- You have not remained in the UK in breach of UK immigration laws

If you want to join an existing partnership or company you will also need to show that:

- You will have an active part in running the business;
- There is a genuine need for your services and investment.

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The exact requirements you will need to satisfy will vary depending on your circumstances. You may want to speak to an immigration lawyer for expert advice. (<https://www.google.co.uk/search?q=richmond+chambers+immigration+barristers>)

To discuss your ECAA Turkish Businessperson visa application with one of our immigration barristers, contact our Turkish Businessperson visa lawyers on 0203 617 9173 or complete our enquiry form below.

What type of business can I start with an Ankara Agreement Turkish Businessperson visa?

Turkish Businessperson visa holders need to set up a business as either a sole trader, director of a limited company or legal partnership. Applicants cannot be employed on this visa, but this does not mean that the Director of a limited company cannot work for their company. Such people can still come within the scope of a 'Business' application.

Turkish Businesspersons relying on the ECAA can also join an existing partnership or company so long as they will be actively involved in running the business and there is a need for their services and investment. As the Innovator and Start-up visa categories do not allow for investment into existing businesses, this means Turkish applicants have greater flexibility than others.

Turkish Businesspersons relying on the Ankara Agreement also have flexibility over what a business can do. Unlike the Tier 1 Entrepreneur, Investor and Innovator categories, there are no strict restrictions on the business type (notably lacking is any prohibition on property-related businesses).

How much money do I need to invest in my business to obtain an ECAA Turkish Businessperson visa?

Unlike the Tier 1 Entrepreneur (£50,000 or £200,000) or Investor (£2m, £5m or £10m) or Innovator (£50,000) categories, no set amount of investment is required in order to make a successful Turkish Businessperson visa application.

Instead, in order to qualify for an Ankara Agreement Turkish Businessperson visa you will need to show that you will bring 'sufficient funds' to establish your business. This means that there is greater subjectivity in play, and further thought around preparing the plans for the business and what it will achieve in the first 12 months and beyond will be important.

Can my family come to the UK as dependants of a Turkish Businessperson visa holder?

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Yes. Applicants can bring their partner and/or children under the age of 21 if they are applying as dependants. A partner means spouse, civil partner, unmarried or same-sex partner.

You will need to show that you can support your family without needing to get another job, as employment is prohibited.

How long can I stay in the UK as an ECAA Turkish Businessperson visa holder?

An initial Turkish Businessperson visa will normally be valid for 12 months. After this first grant, a Turkish Businessperson visa extension is normally granted for three further years, so long as the business is ongoing and will continue to operate in the UK. If you are not able to provide sufficient evidence that the business is still ongoing and your profits are enough to support yourself, leave for a 12 month period can be granted instead. Further grants of three years can follow. Turkish Businessperson visa holders must keep working in their business. Advice from an immigration lawyer will ensure that your initial and extension applications satisfy the strict requirements of the Immigration Rules.

- **Turkish Businesspersons and Workers under the Ankara Agreement**
(<https://immigrationbarrister.co.uk/turkish-businesspersons-and-workers/>)
- **ECAA Ankara Agreement – Applying For Settlement**
(<https://immigrationbarrister.co.uk/ecaa-ankara-agreement-applying-for-settlement/>)
- **Brexit: The Future for Turkish Businesspersons and Workers**
(<https://immigrationbarrister.co.uk/brexit-the-future-for-turkish-businesspersons-and-workers/>)

Can I get ILR as a Turkish Businessperson?

Yes. There has been some turmoil (<https://immigrationbarrister.co.uk/ecaa-ankara-agreement-applying-for-settlement/>) in relation to settlement applications for those living under the Ankara agreement, but Appendix ECAA to the Immigration Rules, introduced in July 2018, makes clear that Turkish Businesspersons can settle (obtain ILR) in the UK.

In order for a Turkish ECAA business person to be granted indefinite leave to remain in this category, the following criteria need to be met.

In brief, an Applicant must:

- be a Turkish ECAA business person;
- have resided in the UK for a continuous period of 5 years under either the Turkish ECAA business person category, the Tier 1 (Entrepreneur) category or a combination thereof;
- have last been granted leave as a Turkish ECAA business person;

- meet the knowledge of English language and life in the UK requirement in Appendix KOLL; [. \(https://www.google.co.uk/search?q=Richmond+Chambers+in](https://www.google.co.uk/search?q=Richmond+Chambers+in)
- (2) continue to run the business(s) s/he relies upon to be regarded as a Turkish ECAA business person and intends to continue running a viable business in the UK;
- have been able to support any family members with them without recourse to public funds to which they are not entitled;
- not fall for refusal under the General Grounds for Refusal.

How soon can a Turkish Businessperson visa holder become British?

Unless you are married to a British citizen, you will need to wait for one year after being granted ILR before applying to naturalise as a British citizen.

This means that it can take five continuous years of residence to get to ILR and another 12 months to be able to apply for British citizenship, so potentially you can apply six years from entry in this category.

If your partner is/becomes British and you have obtained ILR, you can consider applying to naturalise as a British citizen immediately, without waiting for 12 months.

What will happen to the Ankara Agreement Turkish Businessperson visa after Brexit?

Turkish Businesspersons benefit from an agreement relating to the UK's membership of the EU, which means that when the UK leaves the EU the route will be closed.

During the transitional period to 31 December 2020 new applications are being accepted.

Under the Statement of Changes to the Immigration Rules announced on 22 October 2020 (https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/90011/001_Statement_of_changes_in_Immigration_Rules_-_HC_813__PRINT_.pdf), after 31 December 2020 extensions of leave will be granted to 'ECAA' businesspersons (no longer called 'Turkish' businesspersons) under broadly the same conditions as were in place before Brexit, providing the route to settlement after 5 years as is set out in Appendix ECAA (<https://www.gov.uk/guidance/immigration-rules/immigration-rules-appendix-ecaa>) (which is also being preserved post-Brexit, renamed 'Appendix ECAA Settlement'). The new rule states:-

ECAA 6.3. If the applicant meets the ECAA business person requirement, they will be granted permission to stay for up to 36 months.

The end of the road therefore for this category will be when all those present in the UK as Turkish businesspersons (and their partners and children) have achieved indefinite leave to remain under Appendix ECAA.

You can contact our specialist ECAA immigration lawyers for expert advice.

How our immigration barristers can help ECAA Turkish Businessperson visa applicants

(<https://www.google.co.uk/search?q=richmond+chambers+immigration+barristers>)

Home Office guidance relating to Turkish businesspersons sets out strict requirements in terms of the documents which must be provided in support of a Turkish Businessperson visa application, despite there being few statutory requirements under the Immigration Rules governing the category.

It can be helpful to get advice from an immigration lawyer in order to ensure that your application is professionally presented and technically correct.

Our immigration barristers regularly assist Turkish Businesspersons to secure entry clearance, leave to remain and settlement in the UK.

Whether you require expert advice on the requirements of the Immigration Rules, an independent assessment of your prospects of qualifying for a Turkish Businessperson visa or professional assistance with preparing an immigration application, our immigration barristers and immigration lawyers can help.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

Applications for extensions of stay as a Turkish Businessperson



Applications for settlement as a Turkish Businessperson

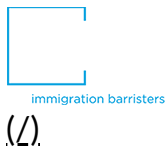


Fresh applications, Administrative reviews and Judicial reviews for Turkish Businesspersons



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Last Chance to Switch to the Turkish Worker Route

(<https://immigrationbarrister.co.uk/last-chance-to-switch-to-the-turkish-worker-route/>)

By Geraldine Peterson - Immigration Barrister

20 Nov 2020

At the end of the Brexit transitional period, at 11pm on 31 December 2020, new applications from Turkish citizens who have been present working in the UK in other employment categories will no longer be able...

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Indefinite Leave to Remain for ECAA Turkish Workers or Business Persons

(<https://immigrationbarrister.co.uk/indefinite-leave-to-remain-for-ecaa-turkish-workers-or-business-persons/>)

By Richmond Chambers -

05 Jun 2020

Under Council Regulation (EEC) 2760/72 (often referred to as the "Ankara Agreement") and its Protocol, there are special arrangements for employed and self-employed Turkish nationals in the EU, including in...

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Turkish Worker Visa Post-Brexit

(<https://immigrationbarrister.co.uk/turkish-worker-visa-post-brexit-richmond-chambers/>)

By Richmond Chambers -

04 Jun 2020

The Turkish Worker route is not immune to the legislation relating to the withdrawal of the UK from the EU. This post explores the current situation during the transitional period to 31 December 2020, and speculates...

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